IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR. JUSTICE DEVAN RAMACHANDRAN

THURSDAY, THE 22ND DAY OF FEBRUARY 2024 / 3RD PHALGUNA, 1945

WP(C) NO. 4727 OF 2024

PETITIONER:

RAMAKRISHNAN K.P.,
AGED 55 YEARS, S/O. KUNHIRAMAN,
KUTTIAPURATH HOUSE,
ARIKKULAM P.O., KOYILANDY,
KOZHIKODE, PIN-673 524.

BY ADVS.
K.V.RASHMI
LAKSHMI

RESPONDENTS:

1 **EXECUTIVE ENGINEER,**
NATIONAL HIGHWAY DIVISION, PWD COMPOUND,
MANANCHIRA, KOZHIKODE, PIN-673 001.

2 **CHIEF ENGINEER,**
PWD (NATIONAL HIGHWAY), PUBLIC OFFICE BUILDING,
LMS VELLAYAMBALAM ROAD, PALAYAM, MUSEUM P.O.,
THIRUVANANTHAPURAM, PIN-695 033.

SRI. P.S. APPU, GOVERNMENT PLEADER

THIS WRIT PETITION (CIVIL) HAVING COME UP FOR ADMISSION ON 22.02.2024, THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

JUDGMENT

Dated this the 22nd day of February, 2024

The petitioner has filed this writ petition seeking interest on the sums that were ordered to be paid by this Court through Ext.P1 judgment.

2. I am afraid that I cannot accede to the afore request because, the petitioner ought to have pressed this prayer when Ext.P1 judgment was delivered; and the factum of them not having done so, being admitted, it would be impossible for this Court to now issue an order in a separate writ petition.

3. Obviously, the petitioner has the remedy to seek appropriate reliefs qua Ext.P1; for which purpose, certainly they have apposite liberties in law.

With the afore clarification, this writ petition is closed.

Sd/-
DEVAN RAMACHANDRAN
JUDGE

bpr

APPENDIX OF WP(C) 4727/2024

PETITIONER'S EXHIBITS

Exhibit P1	**A TRUE COPY OF THE JUDGMENT IN WP(C) NO. 20250/2023 DATED 22.08.2023.**
Exhibit P2	**A TRUE COPY OF THE REPRESENTATION DATED 01.12.2023 SUBMITTED BY THE PETITIONER BEFORE THE 1ST RESPONDENT SHOWING HIS OBJECTION TO THE AMOUNTS SANCTIONED AS WELL AS AGAINST THE NON-SANCTIONING OF THE REASONABLE INTEREST AT THE RATE OF 18% WITH LITIGATION CHARGES.**